

hours at the rate of \$350 per hour, plus \$60 filing fee), to be made payable through defense counsel Harry Nalbandyan at Levin & Nalbandyan within thirty (30) days of service of this Court's signed order or notice of ruling, whichever is sooner.

The Court denies the request for terminating, evidentiary, and issue sanctions.

The Court further denies without prejudice the request for a jury instruction concerning Defendant's discovery noncompliance.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 6, 2026, by 5:00 p.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400639	RODRIGUEZ VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GM does not challenge the hourly rates sought by Plaintiff's counsel. The Court finds the rates reasonable. Plaintiff submitted evidence showing approval of the same rates in Riverside County and approvals by other California Superior Court judges and market data from the 2023 Real Rate Report. (Nita Decl. ¶¶ 21–23, Exs. D–R; Nita Suppl. Decl. ¶¶ 3–4, Exs. A–B.) Thus, the Court approves the hourly rates as requested.

Plaintiff seeks to recover \$18,226.00 in fees for 46.3 hours of work. (Nita Decl. ¶ 5, Ex. A.) GM objects on a category-by-category basis, which are addressed in turn below.

Pre-Engagement Work (1.2 hours/\$370.00)

GM seeks to exclude 1.2 hours (\$370.00) billed for work performed on December 8, 11, 2023, and January 5 and 8, 2024—before the representation agreement was executed on January 9, 2024. The billing entries include intake call with client obtaining initial information (0.3 hours at \$150); sending initial email to client to request documents (0.1 hours at \$150); processing initial documents (0.2 hours at \$150); processing additional documents (0.2 hours at \$150); and reviewing documents, analyzing vehicle information, summarizing repair history and facts, communicating with client, and providing instructions to legal assistant (0.4 hours at \$625). (Nita Decl. ¶ 5, Ex. A at 1.) Plaintiff responds that these tasks are fundamental to any plaintiff law firm, involve standard intake procedures, and fall within the statutory phrase “commencement and prosecution” of the case under Civ. Code § 1794(d).

The Court finds that reasonable intake time is compensable as part of “commencement” of the action. (Civ. Code § 1794(d).) Time spent gathering information from a prospective client who will become a client, reviewing that information to assess the viability of representation, and taking initial steps to organize the case file is directly related to commencing the action. **No reduction is warranted.**

Templated Complaint (2.4 hours billed; GM seeks 2.1 hours / \$562.50 reduction)

Plaintiff billed 1.5 hours at the paralegal rate (1.5 hours at \$250 = \$375) to prepare the Complaint, Summons, and Certificate of Counsel for filing, research the dealer and proper jurisdiction, and 0.2 hours at the attorney rate (0.2 hours at \$625 = \$125) to review and revise the Complaint. (Nita Decl. ¶ 5, Ex. A at 1.) GM argues it should not have taken more than 15 minutes to modify a template.

Plaintiff responds that drafting a complaint requires more than simply changing the caption and vehicle information; counsel must summarize the repair history, review the purchase contract, research the vehicle for class actions or recalls, determine proper venue, tailor facts to the individual case, and complete judicial forms.

While templates promote efficiency, 1.5 hours for a paralegal to prepare a Song-Beverly complaint and accompanying documents is reasonable for the tasks described, including researching proper venue and completing judicial forms. The 0.2 hours for attorney review of a straightforward templated complaint is reasonable. **No reduction is warranted.**

Templated Discovery Requests and Notices of Depositions (3.4 hours billed; GM seeks 2.9 hours / \$884.00 reduction)

Plaintiff billed time to prepare written discovery to both GM and the dealership defendant. For GM, Plaintiff billed 0.2 hours each for FROGs, SROGs, RFPs, and RFAs (totaling 0.8 hours at \$250 = \$200), plus 0.1 hours for Declaration for Additional Discovery (\$25), plus 0.2 hours for attorney review and finalization (\$125), plus 0.2 hours to prepare proofs of service and serve (\$50), plus 0.1 hours to calendar (\$25). (Nita Decl. ¶ 5, Ex. A at 2.) Substantially identical work was performed for the dealership defendant. (Id.) Plaintiff also billed 0.3 hours each to prepare two PMQ deposition notices with production demands (\$75 each = \$150), plus 0.1 hours each for attorney review (\$62 each = \$124), plus 0.1 hours each to calendar (\$25 each = \$50). (Id., Ex. A at 4–5.)

GM argues it could not have reasonably taken more than 30 minutes total to modify stock discovery documents to reflect the proper case caption and vehicle type. Plaintiff responds each discovery request was broken down and itemized, and the time is very reasonable given that counsel must tailor discovery to the specific case.

The Court finds that 0.2 hours per discovery type (FROGs, SROGs, RFPs, and RFAs) is reasonable even for templated discovery, as counsel must review each set to ensure it is appropriate for the specific case. Similarly, 0.3 hours to prepare each PMQ deposition notice with document demands is reasonable. However, calendaring discovery deadlines (0.1 hours per set, appearing four times at \$25 each = \$100) is a clerical task. (See *Save Our Uniquely Rural Community Environment v. Cnty. of San*

Bernardino (2015) 235 Cal.App.4th 1179, 1187 [“SOURCE”].) **Thus, the Court reduces this category by \$100.00.**

Plaintiff's Templated Discovery Responses (4.0 hours billed; GM seeks 3.0 hours / \$750.00 reduction)

Plaintiff billed 0.4 hours at \$250 to email written discovery to Plaintiff with questionnaire and prepare verifications (\$100); 3.0 hours at \$250 to prepare discovery responses (\$750); and 0.5 hours at \$400 for associate attorney review and approval (\$200). (Nita Decl. ¶ 5, Ex. A at 5.)

GM argues 1.0 hour is more than sufficient to complete this work given templated responses. Plaintiff responds discovery responses are not templated and must be plaintiff and car specific and that GM itself served 22 RFAs, 41 SROGs, 29 RFPs, and FROGs.

The Court finds that preparing individualized responses to over 90 discovery requests (plus FROGs) is substantial work that requires more than one hour. Three hours of paralegal time is reasonable. The 0.5 hours for associate attorney review is also reasonable to ensure compliance and accuracy. The 0.4 hours to email discovery to client and prepare verifications is reasonable. **No reduction is warranted.**

Motion for Attorney Fees (10.1 hours billed; GM seeks 7.1 hours / \$4,437.50 reduction)

Plaintiff billed 0.5 hours at \$250 to prepare time records and gather costs (\$125); 0.7 hours at \$625 to review file, billables and costs (\$437); 6.5 hours at \$625 to prepare the Motion, Notice of Motion, Declaration, and exhibits (\$4,062); 0.5 hours at \$250 to prepare the Memorandum of Costs—Worksheet and Summary (\$125); 0.3 hours at \$625 to review and finalize Memorandum of Costs (\$188); 0.8 hours at \$625 to review and analyze the opposition (anticipated, \$500); 1.5 hours at \$625 to prepare the reply (anticipated, \$937); and 0.5 hours at \$625 to attend the hearing (anticipated, \$312). (Nita Decl. ¶ 5, Ex. A at 7–8.)

GM argues counsel should be limited to 1.0 hour to prepare the motion, 1.0 hour for reply, and 1.0 hour for the hearing—a total of 3.0 hours. Plaintiff responds fee motions are not form motions, require sorting through all records to determine recoverable fees and eliminate duplicative time, and involve case-specific factual and procedural histories.

The Court finds that fee motions, even when prepared by experienced counsel using prior motions as guides, require substantial individualized work. Counsel must compile and review all time records, prepare a declaration with supporting exhibits (including numerous prior court orders), draft a memorandum tailored to the case, and respond to specific opposition arguments. However, 6.5 hours to prepare the initial motion papers is high given counsel's experience and the routine nature of a Song-Beverly fee motion.

The Court reduces this entry for preparation of the initial motion papers by 1.5 hours (\$937.50). **Thus, the Court reduces this category by \$937.50.**

Clerical and Administrative Work (15.6 hours billed; GM seeks \$6,475.00 reduction)

GM argues 15.6 hours (\$6,475.00) was billed for clerical work such as calendaring, processing documents, reviewing the file, and communicating internally, which should not be billed at lawyer or paralegal rates.

Plaintiff responds paralegal tasks such as calendaring legal dates and deadlines, checking the file and court docket to ensure necessary documents were filed, and preparing for court hearings require legal training and are compensable.

Purely clerical or secretarial tasks—such as filing and serving documents—are non-compensable administrative work and should not be billed at attorney or paralegal rates. (*Collins v. City of Los Angeles* (2012) 205 Cal.App.4th 140, 159.) Likewise, billing at professional rates for tasks that “appear[], at least, to be clerical”—such as preparing hearing binders, saving records to a computer, and reviewing/tagging citations—may reasonably be found excessive. (*SOURCE, supra*, 235 Cal.App.4th at 1187.)

Based on the review of the billing records, certain tasks appear to be clerical and not properly billed at paralegal rates: purely ministerial calendaring of dates, uploading documents to e-files, retrieving conformed copies, and processing filings. (See Nita Decl. ¶ 5, Ex. A.) However, other tasks involve substantive paralegal work: preparing the file and memo for attorney court appearances (involving review of pleadings and docket to ensure compliance), reviewing substantive filings from opposing counsel, and substantive case management. (*Id.*)

The following entries appear to be purely clerical: calendaring Answer, Case Management Conference, Trial Setting Conference, discovery deadlines, and other routine dates (multiple entries totaling approximately 2.5 hours); retrieving and uploading conformed copies (0.3 hours); and processing service of process (0.2 hours). The Court therefore reduces this category by 3.0 hours at blended rates. Reviewing the breakdown by biller, the majority of calendaring was performed by paralegal “MC” at \$250/hour. (*Id.*, Ex. A at 7.) **The Court reduces this category by \$750.00.**

In summary, the Court reduces the requested fees by the following amounts:

Category	Reduction
Pre-Engagement Work	\$0
Templated Complaint	\$0
Templated Discovery Requests and Notices	\$100.00
Plaintiff’s Discovery Responses	\$0
Motion for Attorney Fees	\$937.50
Clerical and Administrative Work	\$750.00
Total Reduction	\$1,787.50

The Court awards attorneys' fees in the amount of \$16,438.50 (\$18,226.00 – 1,787.50).

Litigation Costs

Plaintiff seeks \$1,006.63 in costs in connection with this fee motion, of which GM challenged \$417.20 across three categories: (i) \$60.00 in motion filing fees; (ii) \$150.00 in jury fees; and (iii) \$207.20 in electronic filing fees.

Under CCP § 1032, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable, and section 1033.5(b) lists items expressly non-allowable. (CCP §§ 1033.5(a)–(b).) Any other items may be allowed or denied in the Court's discretion. (CCP § 1033.5(c)(4).) A verified memorandum of costs is prima facie evidence that the items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them to be unnecessary or unreasonable. (*Foothill-De Anza Community Coll. Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Motion Filing Fee – \$60.00

Filing fees are expressly allowable under CCP § 1033.5(a)(1). GM's argument that this filing fee is "optional" because counsel declined GM's \$10,000 flat-fee offer conflates reasonableness with necessity. Plaintiff was entitled to seek a court-determined fee award under the terms of GM's own 998 Offer and Civ. Code § 1794(d), and filing the fee motion was a proper exercise of that right. **No reduction is warranted.**

Jury Fees – \$150.00

Jury fees are expressly allowable under CCP § 1033.5(a)(2). GM argues there is no legal or factual basis to shift such costs to GM because no jury has ever been convened on this matter. However, Plaintiff paid the statutorily required non-refundable jury fee deposit to preserve the right to a jury trial in a case that was set for trial on July 18, 2025. The trial did not proceed only because the case settled shortly beforehand. The fee was necessarily incurred to preserve a statutory right in a case being prepared for trial. **No reduction is warranted.**

Electronic Filing Fees – \$207.20

Fees for electronic filing or service of documents through an electronic filing service provider are expressly allowable under CCP § 1033.5(a)(14) where the court requires electronic filing. Riverside County Superior Court Local Rule 3118 requires that "in all limited and unlimited civil actions, . . . parties represented by counsel must file documents electronically," and mandates that "electronic filing of documents must be submitted using electronic filing service providers." (Riverside Super. Ct. Local Rule 3118.) Plaintiff's counsel therefore had no option but to incur electronic filing service

provider fees to prosecute this action. Although GM contends the entry is “vague and inadequately itemized,” the verified Memorandum of Costs is prima facie evidence of propriety, and GM has offered no specific challenge to any particular filing charge. **No reduction is warranted.**

Accordingly, the Court denies GM’s request to reduce costs and awards Plaintiff \$1,006.63 in costs as sought.

In summary, the motion is granted in part, denied in part. The Court awards Plaintiff \$16,438.50 in attorney’s fees and \$1,006.63 in costs, for a total of \$17,445.13.

Additionally, the Court advances and vacates the hearing on GM’s motion to tax costs currently set for July 20, 2026, at 8:30 a.m. as GM has addressed reduction of costs in its opposition to the motion for attorney’s fees. The Court has authority to address costs as part of the fee motion. (See Civ. Code, § 1794, subd. (d).)